

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 1803029

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: JOHN GAETA

and

RESPONDENT: ROSE LASTON

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

This matter was continued for hearing on Petitioner/Husband's Request for Order ("RFO") to terminate spousal support. On 2/13/2026 the Court set spousal support at zero effective as of 12/23/26. On 3/20/2026, Husband was ordered to increase his work search efforts, making at least 5 employment inquiries per week, and to provide the Court with a 2026 year-to-date profit & loss statement for Ai Media, a Declaration updating the Court on how he is meeting his monthly expenses, and an updated Income & Expense Declaration.

On 6/12/2026 Respondent/Wife filed a Supplemental Declaration, an updated Income & Expense Declaration with paystubs attached and, and she lodged her 2025 income tax returns with the Court. On 6/16/2026 Husband lodged his 2025 income tax returns. In disregard of the Court's 3/20/2026 Order, Husband failed to provide an updated Income & Expense Declaration, profit & loss statement for Ai Media, or a Declaration updating the Court on how he is meeting his monthly expenses.

Husband's 2025 Form 1040 shows his total income for the year to be \$172,561 (\$14,380/month), which includes \$52 in wages, \$24,723 in pensions/annuities and \$147,786 in business income. He paid real property taxes of \$13,387 (\$1,116/month) in mortgage interest deduction of \$27,074 (\$2,256/month).

Due to Husband's failure to abide by the Court's order to demonstrate meaningful work search efforts and to provide the financial information he was ordered to provide, the Court, adopts the Wife's proposal, and orders as follows:

1. Effective May 1, 2026, Husband shall pay to Wife, as and spousal support, the sum of \$2,700/month, payable on or before the 1st day of each month.
2. Spousal support shall continue until Wife remarries, either party dies, or further Court order.

3. Spousal support is neither taxable to the recipient nor deductible by the payor.

SO ORDERED.

Counsel for Wife shall prepare the order.

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Comi website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/26/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL 1903264

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: ASHLEY FARRAH DAVID	
and	
RESPONDENT: BRENDAN OWAIN- MICHAEL DAVID	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

This matter is set for hearing on Petitioner/Mother’s 4/30/2026 Amended Request for Order (“RFO”) re: modification of the existing 4/16/2025 child custody/visitation order concerning the parties’ children, John Jay (DOB 3/17/2017) and Penelope (DOB 10/11/2018). The 2025 order provides that the parties share joint legal and physical custody; and that the children are with Mother during the school year on alternate weekends from Friday after school through Sunday at 7 pm, and on each Thursday for an afternoon/evening visit until 7 pm. During the summers, the parties alternate weeks.

Mother requests she be given joint legal custody with joint physical custody. She lives in Fairfax, Father lives in San Francisco, and the children attend school at San Francisco Waldorf School. However, as of 5/27/2026 John Jay was suspended for threatening to seriously harm himself and another child. John Jay is currently enrolled in KFS School for children with ADHD; and he is also being assigned a child psychiatrist and therapist through Richmond Area Multi Services (“RAMS”) in San Francisco. Mother requests that the children live with her and attend Manor Elementary school in her neighborhood; she believes they will be better served in public school, and is very concerned about John-Jay’s behavioral issues, which she says have continued to become more serious. The Waldorf School confirmed that the instances of John Jay’s behavioral dysregulation have escalated. She is also concerned that the Waldorf School does not respond to her inquiries regarding the children, and Father has made a number of unilateral decisions regarding the children without consulting with her.

Father filed a Responsive Declaration on 6/4/2026. He states that Mother does not exercise the time-share she already has with the children, often foregoing time she could have with them, does not attend the children’s school activities or conferences, or any special events, and often asks Father to pick up the children, saying she is not well. Father is open to changing to a public